

Court No. - 3

Case :- WRIT - C No. - 107 of 2022

Petitioner :- Ratan Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Mamta Shukla, Ashok Kumar Yadav

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Ashutosh Srivastava, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State and Sri Rajesh Yadav, learned counsel for respondent No.2.

The contention of the learned counsel for the petitioner is that although the electricity has not been supplied by the respondent No.2 and yet the impugned demand notice has been issued against the petitioner for Rs.1,50,442/-.

Sri Rajesh Yadav, learned counsel for the respondent No.2, states that the petitioner may file an objection before respondent No.2 under Para- 6.5 of the U.P. Electricity Supply Code, 2005, and the respondent No.2 shall decide the objection in accordance with law after affording opportunity of hearing to the petitioner.

In view of the statement made by learned counsels for the parties and without expressing any opinion on the merits of the case, this writ petition is **disposed off**, giving liberty to the petitioner to submit a detailed objection before respondent No.2 within a month from today along with a copy of this order and in the event such objection is made within the stipulated period, the same shall be decided by respondent No.2 in accordance with law within next one month after affording reasonable opportunity of hearing to the petitioner.

For a period of two months or till the objection of the petitioner is decided, whichever is earlier, no coercive action shall be taken against the petitioner pursuant to the impugned demand notice.

Order Date :- 13.1.2022

Vandana